

1 A. Of course it's true.

2 Q. Okay. You know that he took the Seroquel and
3 you witnessed the actual effects it had on him, didn't
4 you?

5 A. Can you be more specific? What are you talking
6 about?

7 Q. I can. Can you look at the same exhibit,
8 Exhibit 2, page 76? Just as a reminder, this again is
9 your sworn testimony in another proceeding in August of
10 2018, correct?

11 A. Correct.

12 Q. Which is only a few months after the incident
13 where you actually put the Seroquel in the wine, right?

14 A. Correct.

15 Q. Okay. Please look at line 76 -- no. Sorry.
16 Page 76, line 7.

17 A. Yes.

18 Q. Do you recall giving the following testimony --
19 the answer -- the following questions and giving the
20 following answers:

21 "QUESTION: On at least two occasions, you gave
22 Mr. Russell the drug Seroquel, correct?

23 "ANSWER: Yes.

24 "QUESTION: Was he aware that you were giving him
25 this drug?

1 "ANSWER: No, he was not.

2 "QUESTION: And you were giving it to him to
3 affect his behavior?

4 "ANSWER: I was, because I was really concerned.

5 "QUESTION: And how did it affect Mr. Russell?

6 "ANSWER: It made him sleepy and it made him come
7 out of a manic delusional state and calm down."

8 Do you recall giving that testimony?

9 A. I recall, yes.

10 Q. And you gave that testimony under oath a few
11 months after you actually drugged Mr. Russell?

12 A. I did, but I was not -- I'll just --

13 Q. And based on your answer here, aren't -- you
14 testified that you observed the effects that it had on
15 him, right?

16 A. In -- this was a generalized statement about the
17 effects it had on him. It wasn't specific to those two
18 incidents.

19 Q. Well, you would -- well, it does ask about those
20 specific two incidents, correct?

21 A. It's not -- it -- that's not how I looked at the
22 question at the time. She was asking how the Seroquel
23 affected Mr. Russell, and that was my answer.

24 Q. Right. And you're the one who gave him the
25 Seroquel, correct?

1 Correct?

2 A. Can you specify when -- what you're talking
3 about, like, what -- the two instances that I said?

4 Q. Yeah. It says -- the question was, "On at least
5 two occasions, you gave Mr. Russell the drug Seroquel?"

6 And you said yes, and you said that you
7 didn't -- he wasn't aware that you gave it to him, and
8 you were doing it to affect his behavior, right. That's
9 when you gave it to him, to affect his behavior.

10 And, "How did it" -- the question was, "How did
11 it affect his behavior?"

12 And you said that you observed that it made him
13 sleepy, it made him come out of a manic delusional
14 state. Isn't that your testimony under oath, that you
15 know he took it and you saw the effects that it had on
16 him?

17 A. That's not what my testimony was. It was a
18 generalized effect that I had witnessed, not on those
19 two occasions. I never saw him drink the wine. That's
20 the truth.

21 Q. Okay. From March 4th to June 9th, 2018, the
22 period that you were in San Francisco, did you ever once
23 call the police on Mr. Russell?

24 A. I wanted to, but I didn't, no.

25 Q. Okay.

1 A. Other people did.

2 Q. Your brother did, right?

3 A. And an Uber driver.

4 Q. And he was in New York and he was calling
5 because of something you told him, right?

6 A. Correct, but that wasn't the only police report.

7 Q. Who is Jesse Ozari?

8 MR. WALLER: Well, move to strike, Your Honor,
9 the last part of her answer. I asked her whether or
10 not she had ever called the police and she said no.

11 THE COURT: Motion to strike is granted. The
12 jury shall disregard the last answer.

13 BY MR. WALLER:

14 Q. Is it your testimony that Mr. Russell was
15 basically holding you -- keeping you prisoner in
16 California?

17 A. For a period of time at the end of May of 2018,
18 that is how I felt, yes.

19 Q. Okay. Who is Jesse Ozari?

20 A. She's one of my friends.

21 Q. And where does he live -- or where did he live
22 in 2018?

23 A. In New York.

24 Q. I'm sorry?

25 A. In New York.

1 Q. New York?

2 A. Yes.

3 Q. Okay. And isn't it true that Jesse -- he's a
4 friend of yours, you said, right?

5 A. Yes.

6 Q. And isn't it true that he came to California
7 while you were living with Steve, to visit you?

8 A. I recall, for a brief time, yes.

9 Q. Right. And that was around May, correct?

10 A. I would have to go back and look. It might have
11 been early June.

12 Q. And isn't it true that while you were in
13 California, Steve gave you a credit card to use and free
14 reign to use it as you wished?

15 A. I guess you could say that, but there were
16 certain limitations.

17 Q. And you used that credit card -- he said you
18 could use it, but he gave -- you used that credit card
19 to buy the plane ticket for your friend Jesse to come
20 visit you, right?

21 A. Yes.

22 Q. Mr. Russell --

23 A. I believe -- wait. I take that back. I don't
24 remember what credit card I used at the time to buy his
25 plane ticket.

1 Q. Okay. Do you believe that you used your
2 personal credit card?

3 A. I'm really not sure, so I can't answer that.
4 I'm not sure.

5 Q. Did Mr. Russell say that Mr. Ozari couldn't come
6 to visit you?

7 A. At first he did, yes.

8 Q. But he came and you got to see your friend,
9 right?

10 A. For -- I think for like a few hours, one or
11 two days. It wasn't --

12 Q. He flew all the way out to California just for a
13 couple hours to see you?

14 A. Yes. I wanted him to stay with us.

15 Q. He wasn't there for several days?

16 A. No. I do not -- I don't recall him being there
17 for several days, no.

18 Q. You testified earlier about -- the same incident
19 that we're talking about where you had said that
20 Mr. Russell beat you unconscious, okay, that was around
21 March 8th, right?

22 A. Yes.

23 Q. Okay. And you said you couldn't walk --

24 A. Sorry. You put words in my mouth again. Sorry.
25 I told you I was unsure if he beat me unconscious.

1 You're putting words in my mouth.

2 Q. Right. All I'm saying is that incident, right,
3 that we were talking about. There was a specific
4 incident where that allegation may or may not have been
5 made?

6 A. Can you define the specific incident?

7 Q. Is there an incident on September 8th where you
8 and Mr. Russell had a struggle over a laptop? And there
9 was more to it, but does that refresh your recollection?

10 A. Not on September 8th, no.

11 Q. What -- I'm sorry. May 8th.

12 A. Not May 8th.

13 Q. When was it?

14 A. March 8th of 2018.

15 Q. Sorry. March 8th, correct, right after you
16 arrived in San Francisco, right?

17 A. Shortly after that.

18 Q. And you testified that you were injured so badly
19 that you couldn't walk for, what, two weeks?

20 A. I had trouble walking for around two weeks,
21 yeah. I couldn't run, because I would run to work out
22 and I was unable to run.

23 Q. That was on March 8th. Well, you also had just
24 had a baby a few months earlier, right?

25 A. Like a month and a half earlier, roughly, yeah.

1 Q. And you had a C-section, right?

2 A. Yes.

3 Q. And there were some complications?

4 A. Define complications.

5 Q. I don't know. You testified to that yesterday.

6 A. I had an emergency C-section because I had
7 preeclampsia.

8 Q. And that affected your ability to run for a
9 while, right?

10 A. No, it didn't. I was healed within six weeks
11 and my doctors told me I could run.

12 Q. So you were fine when you got to California?

13 A. I specifically remember the first time I tried
14 to run, and I could not run because I was in so much
15 pain.

16 Q. When was that?

17 A. And it wasn't from my C-section.

18 Q. When was that?

19 A. We went on a trip to Hawaii somewhere -- I want
20 to say late March, early April, and I remember very
21 specifically, and I remember feeling that it definitely
22 was not something from my C-section. It was from -- I
23 still have bruises and --

24 Q. And isn't it true that -- and the bruises were
25 on your leg, right?

1 A. Yes. And I have a picture to show.

2 Q. And isn't it true that two days after that
3 incident on March 8th, you and Mr. Russell went to
4 Hawaii for several weeks, right?

5 A. That's not true. I don't remember when we left.
6 I stayed for about three days because I missed my
7 daughter so much and I was really upset, so I came back
8 after, like, I want to say, two or three days.

9 Q. Okay. But you did fly to Hawaii with
10 Mr. Russell about two days later, right?

11 A. I don't remember if it was two days, a week.
12 Honestly, I don't remember. But it was sometime in the
13 time period I said.

14 Q. On March 9th you told Matan Gavish -- you sent
15 him a picture of the bruise, right, that you had?

16 A. I may have. It sounds like something I would
17 have done, but I don't remember.

18 Q. All right. And do you recall that he said,
19 Well, why don't you come home; and you said, No, I'm in
20 Hawaii to negotiate my money from him, remember?

21 A. No, I do not think I said that. Because Matan
22 looked through e-mails that I sent him during the time
23 and he couldn't find any. So I may have said it, but it
24 doesn't sound like something I would have said.

25 Q. Can you say that again?

1 A. I may have said it. I don't know. I don't
2 remember what I was saying. I said I just didn't see
3 it.

4 MR. WALLER: Your Honor, I don't have a
5 sticker on this yet, but I'm going to ask that this
6 be marked as -- for identification as Exhibit 1- --

7 THE COURT: Just hand it to the clerk, please,
8 and she'll have it marked.

9 MR. WALLER: I believe it's 113.

10 THE COURT: How many pages?

11 THE CLERK: Nine pages.

12 THE COURT: Nine-page document will be marked
13 as Exhibit 113. The record will reflect that a copy
14 has been handed to Ms. Walsh.

15 (Plaintiff's Exhibit No. 113 was marked
16 for identification.)

17 BY MR. WALLER:

18 Q. Ms. Walsh, can you -- this is an e-mail that
19 begins on the first page March 9th, and you e-mailed
20 some photos to Mr. Gavish, right?

21 A. It appears so. I don't recall sending the
22 e-mail, but it appears so.

23 Q. I'm sorry?

24 A. I don't recall sending the e-mail and I don't
25 believe I submitted it in my discovery, but you're

1 saying it's my e-mail, so --

2 Q. Well, let's start with this: The bottom
3 right-hand corner, is there a Bates stamp that says
4 Walsh_003417? Correct?

5 A. Yes, but I believe that's the number you put on
6 it. I don't recall ever seeing this e-mail, and I
7 couldn't find it myself, so.

8 Q. Ms. Walsh, isn't it true that in the discovery
9 process in this case, each side gave documents to the
10 other and they identified their documents with a -- and
11 I -- specific identifying number and code, and yours was
12 "Walsh_" and then the number of the document, correct?

13 A. I just have a hard time believing that this was
14 submitted, because I looked numerous times for multiple
15 pictures of my injuries or anything having to do with my
16 injuries sent to my friends, and I could never find a
17 single e-mail about it. So that's why I just have a
18 hard time believing that this is an actual e-mail I
19 sent.

20 Q. Okay. You see the -- it's from Vital Branding
21 on March 9th to Matan Gavish. Is that his e-mail?

22 A. I'm guessing so. I don't recall.

23 Q. Okay. And the subject line was "keep these,
24 important," right?

25 A. That's what it says.